

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI**

Complaint No. CC006000000057879

Mr. Rakesh Kumar & Mamta Sharma
Versus

..... Complainants

M/s. Nirmal Lifestyle (Kalyan) Pvt Ltd.
Project Registration No. **P51700005234**

..... Respondent

Coram: Hon'ble Dr. Vijay Satbir Singh, Member – 1/MahaRERA

Adv. Lulla appeared for the complainant.

Adv. Tushar Kadam a/w Mrs. Vaishali Mohite appeared for the respondent.

ORDER

(6th August, 2019)

1. The complainants / allottees have filed this complaint seeking directions from MahaRERA to the respondent to pay interest for the delayed possession as provided under Section-18 of the Real Estate (Regulation & Development) Act, 2016 in respect of booking of a flat No. 1002, admeasuring 411 sq.ft. carpet area, on 10th floor of the respondent's project known as "Spirit A" bearing MahaRERA registration No. P51700005234 at Kalyan, Dist Thane.
2. This matter was heard on several occasions and the same was heard finally when both the parties appeared through their respective advocates/representatives. During the hearings, it was brought to the notice of MahaRERA that both the parties are trying to resolve the matter amicably and hence the complainants sought time to file withdrawal application on record of MahaRERA.

3. Accordingly, on 21st June, 2019, the complainants through his advocate has filed an application stating that the respondent is ready and willing to pay interest to the complainant from 1-05-2017 till the actual date of possession as provided under the provisions of section-18 of the RERA Act, 2016, in instalments, as agreed by both the parties. In the light of the said settlement, the complainants requested to dispose of this complaint.
4. Since the respondent is ready to pay interest to the complainants, which is also acceptable to the complainants, nothing survives in this complaint. Hence the complaint stands disposed of as per the above settlement.



(Dr. Vijay Satbir Singh)
Member – 1/MahaRERA